

## **CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT**

**This Agreement is made as of this \_\_\_\_\_  
(Hereinafter: the “Effective Date”) by and between:**

**BASSANI HEALTH (PTY) LTD**

CORNER DYTCHLEY AND MARCIUS ROADS, BARBEQUE DOWNS, KYALAMI, GAUTENG, 1684

(Reg. no. 2024/710124/07)

**and**

Reg. no.

## 1. PARTIES

The Parties to this agreement are all individuals who have signed this document.

**"Disclosing Party"** means the Party providing Confidential Information.

**"Receiving Party"** means the Party receiving Confidential Information.

## 2. RECORDED

It is recorded that:

- 2.1 The Parties have expressed their interest in exploring a business relationship and therefor wish to exchange certain Information (defined below) to facilitate the discussion and/or negotiation to enter a potential formal business/commercial relationship between them (**"Permitted Purpose"**).
- 2.2 said Information is likely to include Information which is considered confidential and proprietary to the Party disclosing such Information.
- 2.3 for the purposes of this agreement, the Party disclosing such information shall be referred to as **"the Disclosing Party"** and the Party/Parties receiving such information shall be referred to as **"the Receiving Party/Parties"**.
- 2.4 the Parties warrant to each other that their respective officers, employees, agents, legal successors-in-title, associates, and associated companies, whether existing now or incorporated in the future, to whom the information of the other Party is disclosed, shall adhere to the terms of this agreement. For the purposes of this clause **"associates"** shall mean any individual, firm or other unincorporated body which is associated with a Party by partnership or other form of shared equity interest, including any company directly or indirectly controlled by such individual, firm or unincorporated body and **"associated company"** shall mean any company or other legal entity which is a subsidiary or holding company of such company or a subsidiary of such holding company; and be no circumvention other specific project at all.
- 2.5 the Parties wish to record the terms and conditions upon which they are prepared to disclose such information to one another.

## 3. THE INFORMATION

"Information" shall, for the purposes of this agreement, mean:

- 3.1 any technical, commercial, financial, scientific, marketing or business information and know-how, including without limitation, all intellectual property, trade secrets, software, software code, marketing strategies, information relating to shareholders or subsidiary companies, client and/or supplier lists, processes, machinery, designs, drawings, technical specifications and data in whatever form relating to the Disclosing Party's business practices or the promotion of the Disclosing Party's business plans, policies or practices, which information is communicated to the Receiving Party/Parties, or otherwise acquired by the Receiving Party/Parties from the Disclosing Party, during the course of the Parties' commercial interactions, discussions and negotiations with one another, whether such information is formally designated as confidential or not; and without in any way limiting the generality of 3.1, any:
- 3.2 prices, terms, and conditions contained in agreements with customers, clients, and suppliers
- 3.3 details or relevant information to the company or individuals you were involved with prior to our meeting/communication held,
- 3.4 details relating to employees of the Parties; and/or
- 3.5 details of production management strategies and techniques.

#### **4. DISCLOSURE OF INFORMATION**

The Parties agree to disclose certain of the information to one another.

- 4.1 The Parties acknowledge that the information is a valuable, special, and unique asset proprietary to the Disclosing Party.
- 4.2 The Parties agree that they will not, during their association with one another, or thereafter, disclose or circumvent the information to any Third Party or client discussed for any reason or purpose whatsoever without the prior Written consent of the Disclosing Party, save in accordance with the provisions of this agreement. For this clause, "**Third Party**" means a party which is not a Party to this Agreement.
- 4.3 The Receiving Party/Parties agrees not to utilize, employ, exploit or in any other manner whatsoever use the information disclosed pursuant to the provisions of this agreement for any purpose whatsoever, without the prior express written consent of the Disclosing Party; and that the unauthorized disclosure of the information to a third party may cause irreparable loss, harm, and damage to the Disclosing Party.
- 4.4 Accordingly, the Receiving Party/Parties indemnifies and holds the Disclosing Party harmless

against any loss, action, claim, harm, damage, or other liability of whatever nature, suffered by the Disclosing Party pursuant to a breach by the Receiving Party/Parties of the provisions of this agreement.

- 4.5 The Receiving Party/Parties acknowledges that monetary damages may not be a sufficient remedy for unauthorized disclosure of the information and that the Disclosing Party shall be entitled, without waiving other rights or remedies, to such injunctive or equitable relief as may be deemed proper by a court of competent jurisdiction including, without limitation, direct and consequential damages.

## **5. TITLE**

All information disclosed by the Disclosing Party to the Receiving Party/Parties is acknowledged by the Receiving Party/Parties:

- 5.1 to be proprietary to the Disclosing Party; and  
5.2 not to confer any rights of whatever nature in such information to the Receiving Party/Parties.

## **6. RESTRICTIONS ON DISCLOSURE AND USE OF THE INFORMATION**

- 6.1 The Receiving Party/Parties may disclose the information on a strictly need to know basis to its officers, employees, professional advisors and auditors, or any other person having regulatory or supervisory authority over the Receiving Party, provided that the Receiving Party/Parties takes whatever steps are necessary to procure that such officers, employees, professional advisors and auditors or other person agree to abide by the terms of this agreement to prevent the unauthorized disclosure of the information to Third Parties.
- 6.2 The Receiving Party/Parties undertakes not to use the information for any purpose other than that for which it is disclosed and in accordance with the provisions of this agreement.

## **7. STANDARD OF CARE**

The Parties agree that they shall protect the information disclosed pursuant to the provisions of this agreement using the same standard of care that each Party applies to its own proprietary, secret, or confidential information and that the information shall be stored and handled in such a way as to prevent any unauthorized disclosure thereof.

## **8. RETURN OF INFORMATION**

- 8.1 The Disclosing Party may, at any time, request the Receiving Party/Parties to return any material containing, pertaining to or relating to the information disclosed pursuant to the terms of this agreement and may, in addition request the Receiving Party/Parties to furnish a written statement to the effect, upon such return, the Receiving Party/Parties has not retained in its possession, or under its control, either directly or indirectly, any such material or copies thereof.
- 8.2 As an alternative to the return of the material contemplated in 8.1 above, the Receiving Party/Parties shall, at the instance of the Disclosing Party, destroy such material and furnish the Disclosing Party with a written statement to the effect that all such material has been destroyed.
- 8.3 The Receiving Party/Parties shall comply with a request, in terms of this clause 8, within seven business days of receipt of such a request.

## **9. EXCLUDED INFORMATION**

The obligations of the Parties pursuant to the provisions of this agreement shall not apply to any information that:

- 9.1 is or was known to or in possession of the Receiving Party/Parties prior to disclosure thereof by the Disclosing Party.
- 9.2 is or becomes officially known otherwise than pursuant to a breach of this agreement
- 9.3 is developed independently of the Disclosing Party by the Receiving Party / Parties
- 9.4 is disclosed by the Receiving Party/Parties to satisfy the order of a court of competent jurisdiction or to comply with the provisions of any law or regulation in force from time to time; provided that in these circumstances, the Receiving Party/Parties shall advise the Disclosing Party in writing prior to such disclosure to enable the Disclosing Party to take whatever steps it deems necessary to protect its interests in this regard; provided further that the Receiving Party/Parties will disclose only that portion of the information which it is legally required to disclose and the Receiving Party/Parties will use its reasonable endeavors to protect the confidentiality of such information to the widest extent possible in the circumstances;
- 9.5 is disclosed to a Third Party pursuant to the prior written authorization from the Disclosing Party; and
- 9.6 is received from a Third Party in circumstances that do not result in a breach of the

provisions of this agreement.

## **10. DURATION**

This agreement shall commence upon the date of signature by all Parties of this agreement and shall continue to bind the Parties for a period of 3 (three) years.

## **11. REPRESENTATIONS AND WARRANTIES**

11.1 Each Party represents and warrants that it has the authority necessary to enter into this agreement and to do all things necessary to procure the fulfilment of its obligations in terms of this agreement.

11.2 The Disclosing Party warrants that disclosure of the information to the Receiving Party/Parties:

11.2.1 will not result in a breach of any other agreement to which it is a party; and

11.2.2 will not, to the best of its knowledge and belief, infringe the rights of any Third Party; and

11.2.3 *The Receiving Party shall indemnify and hold the Disclosing Party harmless from direct losses, claims, or damages arising solely out of a material and intentional breach of this Agreement by the Receiving Party, provided that such liability:*

*(a) shall not include indirect, incidental, special, or consequential damages (including loss of profit or business);*

*(b) shall be subject to a reasonable and proportional limitation of liability, to be agreed upon in writing; and*

*(c) shall not apply in cases where the breach occurred as a result of accident, inadvertent error, or force majeure, provided the Receiving Party acted in good faith and took reasonable steps to prevent the breach."*

## **12. ADDITIONAL ACTION**

Each Party to this agreement shall execute and deliver such other documents and do such other acts and things as may be necessary or desirable to give effect to the terms and provisions of this agreement.

### **13. GENERAL**

#### **13.1 Amendments**

No amendment, interpretation, or waiver of any of the provisions of this agreement shall be effective unless reduced writing and signed by both the Parties.

#### **13.2 Enforcement**

The failure to enforce or to require the performance at any time of any of the provisions of this agreement shall not be construed to be a waiver of such provision and shall not affect either the validity of this agreement or any part hereof or the right of any Party to enforce the provisions of this agreement.

#### **13.3 Entire Agreement**

This agreement contains the entire agreement of the Parties with respect to the subject matter of this agreement and supersedes all prior agreements between the Parties, whether written or oral, with respect to the subject matter of this agreement.

### **14. GOVERNING LAW AND JURISDICTION**

This agreement and the relationship of the Parties in connection with the subject matter of this agreement shall be governed and determined in accordance with the laws of South Africa.

### **15. ADDRESSES**

Each party chooses its registered place of business as its *domicilium cilandi et executandi* ("domicilium") for all purposes arising out of this agreement and each Party shall be entitled to change such domicilium upon five days written notice to that effect.

### **16. PUBLICITY AND ANNOUNCEMENTS**

A Party shall not make any announcements or statements of whatever nature concerning this agreement or the relationship contemplated herein without the prior written consent of the other Party.

### **17. COSTS**

Each Party shall bear its own legal costs of and incidental to the negotiation, preparation, settling, signing and implementation of this agreement.

Any costs, including attorney and own client costs, incurred by either Party arising out of the breach by the other Party of any of the provisions of this agreement shall be borne by the Party in breach.

**18. SEVERABILITY**

In the event of any one or more of the provisions of this agreement being held for any reason to be invalid, illegal or unenforceable in any respect, such invalidity, illegality or unenforceability shall not affect any other provision of this agreement, and this agreement shall be construed as if such invalid, illegal or unenforceable provision(s) was not a part of this agreement, and the agreement shall be carried out as nearly as possible in accordance with its original terms and intent.

Signed at **KYALAMI, JOHANNESBURG** on \_\_\_\_\_  
for **BASSANI HEALTH (PTY) LTD.**

\_\_\_\_\_  
**Name :**

who warrants that he is duly authorised hereto

\_\_\_\_\_

Signed at \_\_\_\_\_ on \_\_\_\_\_

**for**

\_\_\_\_\_  
Signature

who warrants that he is duly authorised hereto

Name: \_\_\_\_\_

Position: \_\_\_\_\_